

ORDINANCE NO. A 9

TOWN OF DECATUR, MISSISSIPPI

**AN ORDINANCE REGULATING THE MANNER IN WHICH
RETAIL SALE AND DISTRIBUTION OF GASOLINE AND THE
SERVICING OF AUTOMOBILES MAY BE MADE IN RELATION
TO THE STREETS OF THE TOWN OF DECATUR, MISSISSIPPI,
AND PROHIBITING OPEN STREETS TO BE USED FOR THE
PURPOSE OF SERVICING MOTOR VEHICLES.**

BE IT ORDAINED BY THE MAYOR AND BOARD OF ALDERMEN OF THE TOWN OF DECATUR, MISSISSIPPI.

SECTION 1. That from and after the passage of this act it shall be unlawful for any person or persons, or for any agency, Corporation or partnership, engaged in the business of selling gasoline or of any gasoline product and/or servicing automobiles or other motor vehicles, public, private or otherwise, to use the open streets of the Town of Decatur for such sale of gasoline or gasoline products, or for the servicing or repair of any motor vehicle; and the term “Open streets” is meant to include and does hereby include any sidewalk now in use in said Town or to be hereafter constructed in said Town, and does further include any road, alleyway or other passageway over which the Town exercises a perpetual easement and it right to control; PROVIDED, HOWEVER, There be excepted from this Act or Ordinance, any such person or persons, Agency, Corporation or Partnership already engaged in the distribution and retail sale of such gasoline or gasoline products or of the servicing and repairing of motor vehicles prior to the effective date of this Ordinance; But this ordinance is designed to include any old business already engaged in such sale of gasoline products or servicing of motor vehicles that may hereafter, or subsequent to the effective date of this Ordinance, remodel, reconstruct, or otherwise rebuild such place of business, garage or service station.

SECTION 2. That it shall be a violation of this Ordinance for any such person or persons so named, in Section 1 hereof, to use the streets, alleyways, or other passageways of said Town, in conflict with the provisions of this Ordinance, in Section 1 hereof, and person or persons convicted of a violation of this Ordinance shall be fined not exceeding One hundred dollars (\$100.00) or imprisoned not exceeding thirty days or by both such fine and imprisonment.

SECTION 3. That this Ordinance take effect and be in force from and after its passage, because of the necessity to protect the life and property of the good citizens of Decatur, Mississippi, and for other good and important reasons shown to the Mayor and Board of Aldermen of said Town, and that all Ordinances heretofore enacted in conflict with this Ordinance be and the same are hereby repealed.

The Ordinance was duly passed by the Mayor and Board of Aldermen of the Town of Decatur at their regular meeting on the 11th day of January, 1949.